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Law Information

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Summary

The Foreign Employment Act, 2064 (2007 AD) is the principal legislation governing the foreign employment sector in Nepal. It was enacted to regulate and systematize the foreign employment business, ensure the protection and welfare of Nepali workers going abroad, and define the rights and obligations of foreign employment agencies. The Act covers the entire spectrum of foreign employment, including licensing of recruitment agencies, pre-departure procedures, worker training, welfare measures, dispute resolution, and penal provisions for violations.

The Act applies to all foreign employment activities conducted from Nepal, including the recruitment, selection, training, and deployment of workers to foreign countries. It establishes the Department of Foreign Employment as the regulatory body, creates the Foreign Employment Board as a welfare and policy advisory body, and sets up the Foreign Employment Tribunal for dispute resolution. The Act mandates licences for agencies, prior approval for deployment, compulsory insurance, minimum wage fixation, welfare fund contributions, and establishes detailed procedures for grievance handling and worker repatriation.

Preamble

WHEREAS it is expedient to amend and consolidate the laws relating to foreign employment by making the foreign employment business systematic, institutional and dignified and by making provisions for the protection of the rights of workers going for foreign employment and of foreign employment entrepreneurs;

The Legislature-Parliament has enacted this Act.

Chapter 1: Preliminary

Section 1: Short Name, Jurisdiction and Commencement

- (1) This Act shall be called the "Foreign Employment Act, 2064".
- (2) This Act shall apply throughout Nepal and in cases where any person commits any act contrary to this Act while residing outside Nepal, this Act shall apply to such person as well.
- (3) This Act shall come into force immediately.

Section 2: Definitions

Unless the subject or context otherwise requires, in this Act:

- (a) "Foreign Employment" means employment to be obtained abroad by a worker.
- (b) "Worker" means a Nepali citizen who obtains foreign employment.
- (c) "Foreign Employment Business" means the business of making workers available for employment abroad.
- (d) "Department" means the Department of Foreign Employment.
- (e) "Ministry" means the Ministry of Labour, Employment and Social Security.
- (f) "Institution" means an institution established under the Companies Act to operate foreign employment business.
- (g) "Licence" means the licence issued under Section 11 to operate foreign employment business.
- (h) "Licence Holder" means an institution that has obtained a licence under Section 11.

(i) "Service Charge" means the amount received by the foreign employment entrepreneur from the worker for sending him/her abroad for employment.

(j) "Promotional Expenses" means the promotional expenses as referred to in Section 41.

(k) "Board" means the Foreign Employment Board constituted under Section 38.

(l) "Labour Attaché" means the Labour Attaché as referred to in Section 68, and this term also includes an official designated by the competent authority in the Nepali diplomatic mission in a foreign country who is entrusted with the responsibility of monitoring the situation of Nepali workers in that country.

(m) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules framed under this Act.

Chapter 2: Provisions Relating to Foreign Employment

Section 3: Countries Where Foreign Employment Business May be Operated

(1) The Government of Nepal shall, by notification in the Nepal Gazette, specify the countries where foreign employment business may be operated.

(2) The Government of Nepal may, for a specified period, suspend the operation of foreign employment business in any of the countries specified under Sub-section (1).

Section 4: Bilateral Labour Agreement

The Government of Nepal may enter into a bilateral labour agreement with a foreign country where Nepali workers are employed or are likely to be employed.

Section 5: Selection of Institution

(1) Where a request is received from a foreign country or an employer institution for the selection and supply of workers, the Government of Nepal may select a licence-holder institution on the basis of open competition and supply workers through that institution.

(1A) While selecting a licence-holder institution under Sub-section (1), the number of workers sent abroad through that institution, any complaints received against that institution, and whether that institution has made special arrangements for the safety of workers shall also be considered.

(2) The Department shall obtain additional cash deposit or bank guarantee from the institution selected under Sub-section (1).

(3) The criteria and procedures for selection of institutions under Sub-section (1) shall be as prescribed.

Section 6: Sending Workers Through Government-to-Government Agreement

(1) Notwithstanding anything contained in this Act, the Government of Nepal may, through agreement with the government of a country having diplomatic relations with Nepal, send workers through any government office, institution, or corporation owned wholly by the Government of Nepal.

(2) The procedures and necessary arrangements for sending workers under Sub-section (1) shall be as prescribed by the Technical Committee comprising the following members:

(a) Minister or State Minister for Labour, Employment and Social Security - Chairperson

(b) Secretary, Ministry - Member

(c) Joint Secretary, Ministry of Finance - Member

(d) Joint Secretary, Ministry of Industry, Commerce and Supplies - Member

(e) Joint Secretary, Ministry of Foreign Affairs - Member

(f) Joint Secretary, Ministry of Home Affairs - Member

(g) Executive Director, National Reconstruction Authority - Member

(h) One representative from each of the following organizations - Member:

- Federation of Nepalese Chambers of Commerce and Industry

- Confederation of Nepalese Industries

- Nepal Chamber of Commerce

(i) President, Foreign Employment Association - Member

(j) Chief, Department - Member-Secretary

(3) The Technical Committee under Sub-section (2) may invite domestic or foreign experts as necessary in its meetings.

(4) The Technical Committee shall regulate its own procedures.

(5) The selection of workers to be sent under this section shall be made on the basis of merit and transparency from among persons meeting the prescribed criteria and qualifications.

(6) If any worker going for foreign employment faces any problem, the Government of Nepal shall be responsible for resolving such problem.

Section 7: Children Not to be Sent for Employment

No child who has not completed eighteen years of age shall be sent for foreign employment.

Section 8: No Gender Discrimination

(1) No gender discrimination shall be made while sending workers for foreign employment under this Act.

Provided that this shall not prevent the sending of workers for foreign employment where the demand is received specifically for male or female workers from the employer institution.

Section 9: Provisions Relating to Special Facilities and Reservations

(1) The Government of Nepal may provide special facilities to women, Dalits, indigenous peoples, persons with disabilities, victims of natural disasters, and persons of endangered groups while sending workers for foreign employment.

(2) While sending workers for foreign employment, the institution shall provide reservation to women, Dalits, indigenous peoples, persons with disabilities, backward regions, and persons of endangered groups in the number specified by the Government of Nepal.

Chapter 3: Provisions Relating to Licence

Section 10: Foreign Employment Business Without Licence Not Allowed

No person shall operate foreign employment business without obtaining a licence under this Act.

Section 11: Provisions Relating to Licence

(1) An institution desiring to operate foreign employment business shall submit an application to the Department in the prescribed format along with the prescribed particulars for a licence.

(2) The Department shall, upon necessary inquiry of the application received under Sub-section (1), if it deems appropriate to grant a licence to operate foreign employment business, obtain a cash deposit of five hundred thousand rupees and a bank guarantee of fifteen million rupees from an institution desiring to send

up to one thousand workers, a cash deposit of one million rupees and a bank guarantee of thirty million rupees from an institution desiring to send more than one thousand but up to five thousand workers, and a cash deposit of two million rupees and a bank guarantee of sixty million rupees from an institution desiring to send more than five thousand workers, and grant the licence.

(3) An institution that has obtained a licence before the commencement of Sub-section (2) shall deposit the cash deposit and bank guarantee as referred to in that sub-section within six months from the date of commencement of that sub-section.

(4) After the deposit of cash deposit under Sub-section (2), if the Department considers such deposit insufficient in proportion to the transaction of the licence holder, it may issue an order to deposit additional deposit.

(5) The Department may accept bank guarantee for the additional deposit to be deposited under Sub-section (4).

(6) If, upon inquiry of the application under Sub-section (1), the licence is not to be granted, the Department shall inform the applicant of the reasons for such decision within the prescribed time.

(7) An applicant who is not satisfied with the decision under Sub-section (6) may, within thirty-five days from the date of receipt of such information, file an appeal with the Ministry, and the decision made by the Ministry on such appeal shall be final.

Section 11A: Merger of Licence-Holding Institutions

(1) Two or more licence-holding institutions may, by entering into a mutual agreement, merge with each other.

(2) The procedures and requirements for merger of licence-holding institutions shall be as prescribed.

Section 11B: Licence Not to be Issued to More Than One Institution of Same Family

(1) Notwithstanding anything contained in this Act, after the commencement of this section, a licence shall not be issued to more than one institution whose shares are held by members of the same family.

(2) If there is more than one institution whose shares are held by members of the same family at the time of commencement of this section, such institutions shall, within six months from the date of commencement of this section, merge with each other in accordance with Section 11A.

(3) Notwithstanding anything contained in this Act, the licence of more than one institution whose shares are held by members of the same family shall not be renewed after the period under Sub-section (2).

Section 12: Licence Period and Renewal

- (1) The licence period shall be one year unless cancelled under Section 13. If the licence is renewed in any year, the period of such licence shall expire at the end of that year.
- (2) A licence holder desiring to renew the licence may submit an application for renewal of the licence along with the prescribed particulars and annual fee every year.
- (3) Notwithstanding anything contained in Sub-sections (1) and (2), a licence holder may renew the licence for a period of three years at a time by paying the renewal fee for three years.

Section 13: Cancellation of Licence

- (1) If a licence holder fails to renew the licence within the period under Section 12, the licence shall be deemed to have been cancelled.
- (2) The Department may cancel the licence of a licence holder who commits any of the following acts:
 - (a) If the licence is obtained by submitting false documents or information;
 - (b) If the cash deposit under Sub-section (3) of Section 11 is not deposited within the specified period;
 - (c) If the additional deposit ordered under Sub-section (4) of Section 11 is not deposited;
 - (d) If the deposit amount under Sub-section (3) of Section 35 is not refunded;
 - (e) If the ownership or management of the institution is transferred without the approval of the Department;
 - (f) If any act is done in contravention of this Act or the rules framed under this Act.
- (3) Before cancelling the licence under Sub-section (2), the concerned licence holder shall be given a reasonable opportunity to defend himself/herself.
- (4) A licence holder who is not satisfied with the decision to cancel the licence under this section may, within thirty-five days from the date of receipt of information of such decision, file an appeal with the Ministry, and the decision made by the Ministry on such appeal shall be final.

Section 14: Prohibition on Transfer of Ownership or Management

Notwithstanding anything contained in prevailing law, a licence holder shall not transfer the ownership or management of the institution without the approval of the Department.

Chapter 4: Provisions Relating to Prior Approval and Selection of Workers

Section 15: Prior Approval to be Obtained

(1) A licence holder shall, on the basis of agreement with the employer institution, submit an application online to the Department for prior approval to send workers for foreign employment, setting forth the following particulars:

- (a) Name, address of the employer institution and country where workers are to be sent;
- (b) Type of foreign employment;
- (c) Type and number of workers;
- (d) Salary, facilities, and benefits to be received by workers;
- (e) Place and time of work;
- (f) Demand letter and power of attorney certified by the Nepali diplomatic mission in the destination country;
- (g) Copy of agreement between employer institution and worker;
- (h) Copy of agreement between licence holder and worker;
- (i) Such other particulars as prescribed.

(2) If, upon inquiry of the application received under Sub-section (1), the demand of the licence holder is found appropriate, the Department shall grant prior approval for sending workers abroad within four days from the date of receipt of the application.

(2A) The Nepali diplomatic mission in the destination country shall send the certified documents referred to in Clause (f) of Sub-section (1) to the Department within fifteen days.

(3) The Department shall not grant prior approval for sending workers in the following circumstances:

- (a) If the service and facilities are not satisfactory in proportion to the qualification of the workers demanded by the employer institution;
- (b) If the type of foreign employment adversely affects the dignity, prestige, or health of workers;

(c) If it is not appropriate from the point of view of the safety, occupational safety, and health of workers;

(d) If there are other prescribed circumstances.

(4) If the decision is made not to grant prior approval under Sub-section (3), the reasons therefor shall be communicated to the licence holder.

Section 16: Publication of Advertisement

(1) After obtaining prior approval under Section 15, the licence holder shall publish an advertisement in a daily newspaper of national level in the Nepali language and on its website within the prescribed period.

(2) The licence holder shall provide a copy of the advertisement published under Sub-section (1) to the Department for the purpose of publication on the Department's website.

(3) The provisions relating to publication of advertisement and selection of workers shall be as prescribed.

Section 17: Selection and List Preparation

(1) After receipt of applications under Sub-section (3) of Section 15, the licence holder shall select workers on the basis of their qualifications, experience, and other prescribed criteria according to the nature of the work demanded, prepare a list of selected persons, and post such list on the notice board of the licence holder's office and submit a copy to the Department.

(2) If any complaint is received by the Department alleging irregularity in the preparation of the list of workers under Sub-section (1), or if the Department itself receives any information from any source, the Department may conduct necessary investigation and if any irregularity is found upon such investigation, the Department shall issue an order to immediately stop all proceedings relating to the selection of workers.

Section 18: Approval for Taking Workers Abroad

A licence holder shall obtain the approval of the Department for taking the persons selected under Section 17 for foreign employment to Nepal and abroad.

Section 19: Provisions Relating to Foreign Employment Permit (Sticker)

(1) After the selected workers obtain their passports, the licence holder shall submit a written application to the Department, along with the following documents, for a foreign employment permit (sticker) to send such workers for foreign employment:

(a) Certificate of skill training and orientation, if required for any work;

- (b) Certificate of orientation;
- (c) Certificate of insurance;
- (d) Agreement between licence holder and worker;
- (e) Agreement between employer institution and worker;
- (f) Receipt or bank voucher of the amount deposited by the worker to the licence holder;
- (g) Such other particulars as prescribed.

(2) If the particulars submitted under Sub-section (1) are found to be in conformity with the particulars submitted under Section 15 upon inquiry, the Department shall, within two days, affix the foreign employment permit (sticker) on the passport of such worker.

(3) If the information submitted is found to be different from the particulars submitted under Section 15, the Department may prohibit the licence holder from sending the worker abroad for foreign employment and shall communicate the reasons for such prohibition.

Section 20: Sending Workers for Foreign Employment

(1) The licence holder shall send the concerned workers to the concerned country within three months from the date of obtaining the foreign employment permit. If the period has expired, the licence holder shall refund the amount collected from the concerned workers within thirty days along with twenty-five percent additional amount.

(2) If any worker, after obtaining the passport, refuses or is unable to go for foreign employment, the licence holder shall refund the amount to the worker after deducting the passport fee.

Provided that if the worker refuses to go due to reasons other than those mentioned at the time of obtaining prior approval, the passport fee shall not be deducted.

Section 21: Individual Application for Foreign Employment

(1) If any person desires to go for foreign employment individually, he/she shall submit an application to the Department for approval, setting forth the following particulars:

- (a) Country where employment is desired;
- (b) Nature of work to be done abroad;
- (c) Approval letter from the employer;

- (d) Agreement clearly mentioning the service, facilities, and benefits;
- (e) Certificate of orientation training;
- (f) Certificate of insurance.

(2) Upon receipt of the application under Sub-section (1), the Department shall, after necessary inquiry, if the demand of the applicant is found appropriate, grant approval to go abroad for employment, and while granting such approval, the Department shall require the submission of a certificate of insurance.

(3) Notwithstanding anything contained in this section, no licence holder shall send workers individually.

Section 21A: Receipt of Complaints

(1) Complaints under this Act shall be received in writing or through electronic medium, and complaints received in this manner shall be duly registered and processed by the Department or office.

(2) Complaints shall also be filed with the Chief District Officer for matters under this Act, and the Chief District Officer shall forward complaints against licence-holding institutions to the Department within seven days.

(3) If a complaint is received against an individual, the Chief District Officer shall, after inquiry, if mediation is required between the worker and the employer, mediate between both parties and inform the Department of the mediation.

(4) If mediation is not possible or the nature of the complaint does not permit mediation, the Chief District Officer shall forward the complaint to the Department for necessary action.

Section 21B: Provisions Relating to Renewal of Foreign Employment Permit

(1) A worker desiring to renew the foreign employment permit shall submit an application to the concerned office along with the prescribed documents.

(2) A worker residing abroad may obtain the foreign employment permit from the Nepali diplomatic mission in the concerned country twice at most.

(3) Other provisions relating to renewal of foreign employment permit shall be as prescribed.

Section 22: Use of Domestic Airport

(1) A licence holder shall use domestic airports while sending workers for foreign employment.

(2) If it is not possible to send workers from domestic airports due to non-availability of air tickets, the licence holder may, with the approval of the Department, use foreign airports for sending workers.

(3) While using foreign airports with the approval of the Department under Sub-section (2), the licence holder shall produce the workers at the immigration office at the departure point as prescribed.

Section 23: Minimum Wage Fixation

The Government of Nepal may, by notification in the Nepal Gazette, fix the minimum wage to be received by workers going for foreign employment.

Section 24: Service Charge and Promotional Expenses

(1) The Government of Nepal may fix the maximum service charge and promotional expenses that an institution may receive from workers for any particular country or company.

(2) A worker selected for foreign employment shall deposit the prescribed amount in the office or bank account of the licence holder after the licence holder informs the Department of the approval for visa from the concerned country.

(3) If the amount is deposited in the office of the licence holder under Sub-section (2), a receipt shall be given to the worker.

Explanation: For the purposes of this section, "promotional expenses" means the expenses incurred by the licence holder for obtaining the visa, worker's quota, and other miscellaneous expenses in Nepal and abroad while sending workers for employment.

Section 25: Agreement for Foreign Employment

(1) Before sending a worker for foreign employment, a clear agreement shall be made between the employer institution or its authorised representative and the worker, and between the licence holder and the worker, regarding the safety and security of the worker in the concerned country, the service, facilities or both facilities, and the remuneration to be received by the worker.

(2) The licence holder shall translate the agreement under Sub-section (1) into Nepali language and submit two copies to the Department, and the Department shall certify one copy and keep it in the Department and provide the other copy to the worker.

Section 26: Insurance

- (1) The licence holder shall, before sending a worker for foreign employment, insure each worker for a minimum amount of five hundred thousand rupees for the contract period so that compensation is available in case of death or disability of the worker due to any cause at any time.
- (2) A person going for foreign employment individually under Section 21 shall also insure himself/herself for the amount referred to in Sub-section (1) before going for foreign employment.
- (3) Other provisions relating to insurance shall be as prescribed.

Chapter 5: Provisions Relating to Training and Classification of Workers

Section 27: Training to be Obtained

A worker going for foreign employment shall, before going abroad, obtain orientation training from an institution authorised by the Department as prescribed.

Section 28: Provisions Relating to Institutions Conducting Orientation Training

- (1) An institution desiring to provide orientation training to workers going for foreign employment shall submit an application to the Department for approval to conduct such training.
- (2) The Department shall forward the application received under Sub-section (1) to the Board.
- (3) The Board shall, upon necessary inquiry of the application received under Sub-section (2), if the infrastructure, human resources, and other resources of the institution are found appropriate, recommend to the Department for approval.
- (4) Based on the recommendation under Sub-section (3), the Department shall, upon obtaining the prescribed deposit and fee, grant approval to the applicant institution to conduct orientation training.
- (5) An institution that has obtained approval to conduct orientation training before the commencement of this Act shall, if it meets the criteria and standards under this section, have its approval renewed by the Department.
- (6) Provisions relating to renewal of approval, renewal fee, and cancellation of approval shall be as prescribed.

Section 29: Curriculum and Standards

- (1) The Board shall determine the curriculum and standards of orientation training to be provided by institutions conducting orientation training.
- (2) The curriculum determined under Sub-section (1) shall, in addition to other matters, include the status of gender-based violence and measures for its resolution.

Section 30: Skill Training to be Obtained

A worker going for foreign employment requiring skill-based training shall obtain such training from an institution recognized by the Government of Nepal.

Explanation: For the purposes of this section, "institution recognized by the Government of Nepal" means the Council for Technical Education and Vocational Training and other institutions affiliated with such Council established under prevailing law.

Section 30A: Provisions Relating to Skill Testing

- (1) If the skill-based training to be provided to a worker going for foreign employment is of six months or less, the skill test of such training shall be conducted by the National Skill Testing Board.
- (2) The procedures and standards for skill testing under Sub-section (1) shall be as determined by the National Skill Testing Board.
- (3) Notwithstanding anything contained in this section, skill training or orientation provided by the Government of Nepal or a corporation owned by the Government of Nepal, or skill tests conducted by the Council for Technical Education and Vocational Training shall not be required to be conducted under this section.

Section 31: Classification of Workers

The Government of Nepal may, by notification in the Nepal Gazette, classify workers going for foreign employment and fix the skill-based training to be obtained according to such classification.

Chapter 6: Provisions Relating to Foreign Employment Welfare Fund

Section 32: Establishment of Foreign Employment Welfare Fund

(1) A Foreign Employment Welfare Fund shall be established for the social security and welfare of workers who have gone or returned from foreign employment and their families.

(2) The following amounts shall be deposited in the Fund:

- (a) Amount deposited by workers before going for foreign employment as prescribed;
- (b) Amount of deposit referred to in Sub-section (2) of Section 11 and interest earned from the operation thereof;
- (c) Amount received as licence fee and renewal fee;
- (d) Amount received as approval fee and renewal fee for institutions conducting orientation training;
- (e) Amount received from time to time from institutions related to foreign employment business; and
- (f) Amount received as donation or assistance from domestic or foreign persons or institutions.

(3) Amount received from foreign persons or institutions under Clause (f) shall be deposited only after obtaining the approval of the Government of Nepal.

Explanation: For the purposes of this Act, "family" means the husband or wife, son, daughter, or mother, father whom the worker going for or returning from foreign employment maintains, and in the case of a female worker, also includes her father-in-law and mother-in-law.

Section 33: Utilization and Operation of Fund

(1) The Fund shall be utilized for the following purposes:

- (a) To provide skill-based training to workers going for foreign employment;
- (b) To provide compensation to workers who become disabled or die abroad and to refund repatriation expenses to workers who return;

(b1) To bear the prosecution and litigation expenses of workers who are accused of serious criminal offences abroad;

(b2) To conduct publicity and awareness programmes regarding the rights and potential risks of workers going for foreign employment;

(c) To operate employment-oriented programmes for workers returning from foreign employment;

(d) To bring the body of a worker who dies abroad to Nepal and provide financial assistance to the family;

(e) To manage foreign employment promotional expenses; and

(f) To perform such other functions as prescribed.

(2) Other provisions relating to the operation of the Foreign Employment Welfare Fund shall be as prescribed.

Chapter 7: Provisions Relating to Emigration Check

Section 34: Emigration Check

(1) A worker who has obtained a labour permit for foreign employment shall have his/her emigration check done at the emigration check point.

(2) Notwithstanding anything contained in Sub-section (1), a worker who has obtained permission to engage in foreign employment in a country which is a member of the South Asian Association for Regional Cooperation (SAARC) may, instead of having emigration check done at the emigration check point, have such check done at the immigration check point at the airport.

(3) The provisions relating to emigration check shall be as prescribed.

Section 35: Labour Permit to be Produced

A worker who is required to have emigration check done under Section 34 shall produce the labour permit before the emigration check officer.

Section 36: Emigration Check Officer

(1) The Government of Nepal shall designate the emigration check officer at the emigration check point.

(2) An emigration check officer designated under Sub-section (1) shall, upon production of the labour permit under Section 35, examine whether the foreign employment to be engaged in by the worker is in accordance with the labour permit, and if it appears to be in accordance therewith, the officer shall give emigration check to such worker.

(3) If, in making examination under Sub-section (2), the emigration check officer suspects that the foreign employment to be engaged in by the worker is not in accordance with the labour permit, the officer shall, for the purpose of inquiry, prevent the worker from going abroad for the time being and give information thereof to the Department immediately.

(4) The Department shall, upon receipt of information under Sub-section (3), immediately make necessary inquiry and give necessary direction to the emigration check officer.

Section 37: Information may be Obtained

The emigration check officer may, for the purpose of emigration check, obtain necessary information from the worker or licence holder.

Section 38: Prevention of Departure

(1) Where a worker produces a labour permit containing false or misleading particulars, the emigration check officer shall prevent the worker from going abroad.

(2) Where a worker is found to be going abroad for employment without obtaining a labour permit, the emigration check officer shall prevent such worker from going abroad.

Chapter 8: Provisions Relating to Sending Workers on a Group Basis

Section 39: Provisions Relating to Sending Workers on a Group Basis

(1) A licence holder may, for the purpose of sending workers on a group basis for foreign employment, enter into an agreement with the employer of the concerned country.

(2) A licence holder who sends workers on a group basis under Sub-section (1) shall send them only after obtaining approval from the Department.

(3) The procedures for sending workers on a group basis and other provisions relating thereto shall be as prescribed.

Section 40: Agreement

(1) An agreement to be entered into between a licence holder and an employer under Section 39 shall contain the following matters:

- (a) Terms and conditions of foreign employment;
- (b) Facilities to be provided to the worker;
- (c) Types of work;
- (d) Number of workers;
- (e) Remuneration and other financial benefits;
- (f) Duration of employment;
- (g) Working hours and weekly holidays;
- (h) Provisions relating to accommodation and food;
- (i) Provisions relating to insurance and medical treatment;
- (j) Provisions relating to air ticket;
- (k) Provisions relating to renewal of agreement;
- (l) Provisions relating to settlement of disputes;
- (m) Provisions relating to compensation in case of death or disability of the worker; and
- (n) Other necessary matters.

(2) The Department shall, in granting approval under Sub-section (2) of Section 39, examine whether the agreement under Sub-section (1) contains the matters referred to in Clauses (a) to (n).

Section 41: Sending Workers on Group Basis through Bilateral Agreement

Notwithstanding anything contained elsewhere in this Act, workers may be sent on a group basis for foreign employment in accordance with a bilateral agreement entered into between the Government of Nepal and the government of any foreign country.

Chapter 9: Provisions Relating to Sending Workers on an Individual Basis

Section 42: Application to be Submitted

(1) A worker who desires to go for foreign employment on an individual basis shall submit an application to the Department in the prescribed format.

(2) The Department shall, upon necessary examination of the application received under Sub-section (1), if the particulars contained therein appear to be satisfactory, issue a labour permit to the applicant in the prescribed format.

Section 43: Documents to be Submitted

A worker who submits an application under Section 42 shall submit the following documents along with the application:

- (a) A copy of the passport;
- (b) An appointment letter or work agreement received from the employer;
- (c) Particulars relating to the facility to be received from the employer; and
- (d) Other documents as prescribed.

Chapter 10: Provisions Relating to Sending Workers on a Royalty Basis

Section 44: Sending Workers on a Royalty Basis

(1) A person or institution desiring to send workers on a royalty basis for foreign employment shall submit an application to the Department in the prescribed format.

(2) The Department shall, upon necessary examination of the application received under Sub-section (1), if the terms and conditions between the employer and the worker appear to be reasonable, grant permission to send the worker on a royalty basis.

Section 45: Agreement to be Entered into

A person or institution who obtains permission under Section 44 shall, before sending a worker for foreign employment on a royalty basis, enter into an agreement with the worker containing the following matters:

- (a) Types of work;
- (b) Remuneration and other financial benefits;
- (c) Duration of employment;
- (d) Working hours and weekly holidays;
- (e) Facilities to be provided;
- (f) Provisions relating to compensation in case of death or disability; and
- (g) Other necessary matters.

Chapter 11: Provisions Relating to Employment and Social Security Agreement

Section 46: Employment and Social Security Agreement

(1) The Government of Nepal may, for the protection and welfare of workers going for foreign employment, enter into an employment and social security agreement with the government of the concerned country.

(2) An agreement to be entered into under Sub-section (1) shall, in addition to other matters, contain the following matters:

- (a) Provisions relating to minimum remuneration and other facilities to be provided to the worker;
- (b) Provisions relating to social security;
- (c) Provisions relating to working hours and holidays;
- (d) Provisions relating to compensation in case of death or disability of the worker;
- (e) Provisions relating to repatriation of the worker;
- (f) Provisions relating to settlement of labour disputes;

- (g) Provisions relating to granting of leave and exit permit to the worker;
- (h) Provisions relating to taking action against the employer who violates the agreement; and
- (i) Other necessary matters.

Section 47: Implementation of Agreement

- (1) The Government of Nepal shall monitor and evaluate whether the agreement entered into under Section 46 is being implemented by the concerned country.
- (2) Where it appears that the agreement is not being implemented, the Government of Nepal shall take necessary initiative for its implementation through diplomatic channel.

Chapter 12: Provisions Relating to Sending Domestic Workers

Section 48: Sending Domestic Workers

- (1) A licence holder desiring to send workers for domestic work in a foreign country shall, in addition to the matters contained in this Act, comply with the procedures as prescribed.
- (2) Before sending a worker for domestic work under Sub-section (1), the licence holder shall obtain approval from the Department.
- (3) The Department shall, before granting approval under Sub-section (2), examine the terms and conditions of employment and the facilities to be provided to the worker.

Section 49: Special Provisions Relating to Domestic Workers

- (1) A licence holder who sends a worker for domestic work shall deposit an additional amount as prescribed in the Foreign Employment Welfare Fund for the security of such worker.
- (2) A worker who is sent for domestic work shall be provided with orientation training as prescribed, in addition to the general orientation training.
- (3) The licence holder shall make arrangements for direct communication between the domestic worker and his/her family.

Section 49A: Prohibition on Sending to Certain Countries

Notwithstanding anything contained elsewhere in this Act, the Government of Nepal may, by notification in the Nepal Gazette, prohibit the sending of domestic workers to any country where the security and welfare of workers cannot be guaranteed.

Chapter 13: Provisions Relating to Rescue, Repatriation and Shelter

Section 50: Rescue of Workers

(1) Where a worker going for or engaged in foreign employment is in a condition requiring rescue due to any reason, the Government of Nepal shall make necessary arrangements for the rescue of such worker.

(2) The expenses incurred in the rescue of a worker under Sub-section (1) shall be borne from the Foreign Employment Welfare Fund.

Section 51: Repatriation of Workers

(1) Where a worker engaged in foreign employment needs to be repatriated to Nepal due to any of the following reasons, the licence holder who sent such worker shall make arrangements for repatriation:

- (a) Completion of the employment contract period;
- (b) Termination of employment contract in accordance with the prevailing law of the concerned country;
- (c) Death or disability of the worker;
- (d) War, internal conflict, or natural disaster in the concerned country;
- (e) Exploitation or oppression of the worker by the employer; or
- (f) Other circumstances as prescribed.

(2) Where a licence holder fails to make arrangements for repatriation under Sub-section (1), the Government of Nepal shall make such arrangements and realize the expenses from the licence holder.

Section 52: Shelter

- (1) The Government of Nepal may establish or cause to be established shelters in countries with a large number of Nepali workers for the temporary protection and assistance of workers in distress.
- (2) The management and operation of shelters under Sub-section (1) shall be as prescribed.

Section 53: Emergency Fund

- (1) The Government of Nepal may establish an emergency fund for the immediate rescue and repatriation of workers in distress.
- (2) The operation and management of the emergency fund under Sub-section (1) shall be as prescribed.

Chapter 14: Provisions Relating to Information, Communication and Records

Section 54: Information and Communication

- (1) The Department shall establish and operate an information and communication system for the protection and welfare of workers going for foreign employment.
- (2) The information and communication system under Sub-section (1) shall include the following matters:
 - (a) Information about the country, employer, and nature of work for foreign employment;
 - (b) Information about the rights and obligations of workers;
 - (c) Information about potential risks and precautions;
 - (d) Information about the licence holder; and
 - (e) Other necessary information.

Section 55: Information to be Provided by Licence Holder

A licence holder shall provide the following information to the Department:

- (a) Number of workers sent for foreign employment;

- (b) Name of the country and employer;
- (c) Nature of work and remuneration;
- (d) Status of workers abroad;
- (e) Number of workers returned; and
- (f) Other information as prescribed.

Section 56: Records to be Maintained

- (1) The Department shall maintain updated records of workers going for foreign employment and licence holders.
- (2) The records under Sub-section (1) shall be maintained in digital format as far as possible.

Section 57: Publication of Information

The Department shall publish information relating to foreign employment on its website or through other media from time to time.

Section 58: Confidentiality

The Department and its officers shall maintain confidentiality of the personal information of workers obtained in the course of carrying out functions under this Act.

Chapter 15: Provisions Relating to Investigation and Inquiry

Section 59: Investigation Officer

- (1) The Government of Nepal may designate an investigation officer for the investigation of offences under this Act.
- (2) The investigation officer designated under Sub-section (1) shall have the power to:
 - (a) Enter and inspect the office of a licence holder;
 - (b) Examine records and documents;
 - (c) Obtain statements from concerned persons;

- (d) Seize documents and evidence relating to the offence; and
- (e) Exercise such other powers as prescribed.

Section 60: Procedures for Investigation

- (1) An investigation officer shall, while conducting investigation, follow the procedures as prescribed.
- (2) An investigation officer shall complete the investigation within the prescribed time limit and submit a report to the Department.

Section 61: Power to Issue Orders

- (1) The Department may, based on the investigation report under Section 60, issue the following orders:
 - (a) To suspend or cancel the licence;
 - (b) To impose administrative fines;
 - (c) To direct compensation to the worker; or
 - (d) To take other necessary action.

Section 62: Government Attorney to Conduct Cases

The Government attorney shall conduct cases relating to offences under this Act.

Chapter 16: Provisions Relating to Offences and Penalties

Section 63: Offence of Engaging in Foreign Employment Business without Licence

- (1) A person who engages in foreign employment business without obtaining a licence under this Act shall be punished with imprisonment for a term not exceeding five years or a fine not exceeding five hundred thousand rupees, or both.
- (2) A person who engages in foreign employment business after the cancellation of the licence shall be punished with imprisonment for a term not exceeding seven years or a fine not exceeding seven hundred thousand rupees, or both.

Section 64: Offence of Sending Workers without Obtaining Approval

A licence holder who sends workers for foreign employment without obtaining approval under this Act shall be punished with imprisonment for a term not exceeding three years or a fine not exceeding three hundred thousand rupees, or both.

Section 65: Offence of Collecting Excessive Fee

A licence holder who collects fee or expenses from a worker in excess of the amount prescribed under this Act shall be punished with imprisonment for a term not exceeding two years or a fine not exceeding two hundred thousand rupees, or both.

Section 66: Offence of Making False Commitment

A licence holder who makes false commitment to a worker regarding foreign employment shall be punished with imprisonment for a term not exceeding three years or a fine not exceeding three hundred thousand rupees, or both.

Section 67: Offence of Misappropriation

A licence holder who misappropriates or embezzles any amount deposited by a worker or the employer shall be punished with imprisonment for a term not exceeding five years or a fine not exceeding five hundred thousand rupees, or both.

Section 68: Offence of Tampering with Documents

A person who tampers with, forges, or falsifies any document relating to foreign employment shall be punished with imprisonment for a term not exceeding three years or a fine not exceeding three hundred thousand rupees, or both.

Section 69: Offence of Obstruction

A person who obstructs an investigation officer or a government employee in the performance of their duties under this Act shall be punished with imprisonment for a term not exceeding one year or a fine not exceeding one hundred thousand rupees, or both.

Section 70: Offence of Providing False Information

A person who provides false information to the Department or investigation officer shall be punished with imprisonment for a term not exceeding one year or a fine not exceeding fifty thousand rupees, or both.

Section 71: Offence of Sending to Prohibited Country

A licence holder who sends a worker to a country where foreign employment has been prohibited by the Government of Nepal shall be punished with imprisonment for a term not exceeding seven years or a fine not exceeding seven hundred thousand rupees, or both.

Section 72: Offence Relating to Emigration Check

A worker who attempts to go abroad for foreign employment without obtaining emigration check or by producing false documents shall be punished with a fine not exceeding twenty-five thousand rupees.

Section 73: Offence of Exploitation of Worker

A licence holder or employer who exploits or oppresses a worker going for or engaged in foreign employment shall be punished with imprisonment for a term not exceeding five years or a fine not exceeding five hundred thousand rupees, or both.

Section 74: Offence Committed by Corporate Body

(1) Where an offence under this Act is committed by a corporate body, the person who was involved in the commission of such offence at the time of its commission shall be liable to punishment.

(2) Notwithstanding anything contained in Sub-section (1), where it is proved that the offence was committed with the consent or connivance of, or due to negligence on the part of, any director, manager, secretary, or other officer of the corporate body, such person shall also be liable to punishment.

Section 75: Offence to be a Cognizable and Non-Bailable

Offences under this Act shall be cognizable and non-bailable.

Section 76: Compensation

(1) Where a worker suffers loss or damage due to the act or omission of a licence holder, the licence holder shall provide compensation to the worker for such loss or damage.

(2) The amount of compensation under Sub-section (1) shall be as determined by the Department.

Chapter 17: Provisions Relating to Appeal and Review

Section 77: Appeal

(1) A person who is not satisfied with an order made by the Department under this Act may file an appeal before the Appellate Court within thirty-five days from the date of receipt of the order.

(2) A person who is not satisfied with a decision made by the Board may file an appeal before the Government of Nepal within thirty-five days from the date of receipt of the decision.

Section 78: Review

The Department or the Board may review its own order or decision if it considers necessary to do so.

Section 79: Stay Order

The appellate authority may, upon an application filed by the appellant, issue an order to stay the execution of the order or decision appealed against.

Chapter 18: Miscellaneous

Section 80: Delegation of Powers

(1) The Government of Nepal may delegate any of the powers conferred on it under this Act to the Department or any other authority.

(2) The Department may delegate any of the powers conferred on it under this Act to any officer subordinate to it.

Section 81: Power to Form Committee

(1) The Government of Nepal may form necessary committees for the implementation of this Act.

(2) The functions, duties, and powers of the committee formed under Sub-section (1) shall be as prescribed.

Section 82: Power to Give Directions

The Government of Nepal may give necessary directions to the Department and the Board for the implementation of this Act, and it shall be the duty of the Department and the Board to comply with such directions.

Section 83: Prevailing Law to Apply

Matters provided for in this Act shall be governed by this Act, and other matters shall be governed by the prevailing law.

Section 84: Amendment and Repeal

(1) The Foreign Employment Act, 2042 (1985) is hereby repealed.

(2) All acts and actions done or taken under the Act referred to in Sub-section (1) shall be deemed to have been done or taken under this Act.

Section 85: Removal of Difficulty

If any difficulty arises in connection with the implementation of this Act, the Government of Nepal may, by notification in the Nepal Gazette, issue necessary orders to remove such difficulty.

Section 86: Power to Make Rules

The Government of Nepal may make necessary rules for the implementation of this Act.

Section 87: Power to Make By-Laws

(1) The Board may make by-laws, subject to the provisions of this Act and the rules made thereunder, for the operation of its functions.

(2) The by-laws made under Sub-section (1) shall come into force after being approved by the Government of Nepal.

Key Metadata

Law Title (Nepali)	वैदेशिक रोजगार ऐन, २०६४
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Law Title (English)	Foreign Employment Act, 2064 (2007)
Act Number	Act No. 18 of 2064 (2007 AD)
Certification Date	2064.5.19 BS (September 4, 2007 AD)
Commencement Date	2064.5.19 BS
Total Sections	87
Total Chapters	18
Primary Regulator	Department of Foreign Employment
Scope	Regulation of foreign employment business, protection of Nepali workers abroad, establishment of Foreign Employment Welfare Fund, emigration procedures, training requirements, offences and penalties
Related Legislation	Labour Act 2074, Foreign Employment Rules 2064, Contribution-based Social Security Act 2074
Amendments	Amended by Foreign Employment (First Amendment) Act, 2066; various amendments up to 2074
Current Status	In force (some provisions amended by subsequent legislation)